

THE CHARGES AGAINST MARVIN L. REGENSBURG

Form of charge under Article XVIII, Section 3, Constitution and By-Laws of the International Union of Elevator Constructors (2021), with its evidence in full (Parts A and B) · prepared September 9, 2026 by Kevin Mears for a member's signature · Attachment 2 of 4

Local union: IUEC Local 131 · **To be filed with:** the Recording Secretary, Local 131, under Article XVIII, Section 3

Accused: Marvin L. Regensberg, Business Representative / Financial Secretary, IUEC Local 131

Punishable offenses charged (Article XVIII, Section 1):

1. **Section 1(6)** — “failure or refusal to abide by an oath taken at the time an individual becomes a member” — the Oath of Obligation, Article XIII, Section 4, in its clause “never commit any act or offense that will bring the International, the Local Union, or the Trade Union Movement in general, into disrepute.”

2. **Section 1(12)** — “action which brings or tends to bring the International Union and/or local unions into disrepute with any bodies with which the International Union and/or local unions are affiliated, or which may bring or tend to bring the International Union and/or local unions into disrepute with the public or into conflict with the law.”

Facts of the offenses charged:

On January 22, 2025, after a member asked the Local for assistance preparing a written safety refusal, the accused responded from the Local's account and wrote: “As for as a statement, if you put it in writing to KONE, they might fire you. ... Don't write anything down. That is my advice.” The exchange is reproduced in full in Part A below.

On September 3, 2026, from the Local's email address and from a personal address replying on the same thread — a thread that carries the Local's signature block in its quoted history — the accused replied in writing after the withdrawn former member asked in writing that Article XVIII be applied to the accused and to himself. The replies included: “Many people are saying they thought you were gay, there is nothing wrong with being gay.” and “Keep running your mouth and I will keep insulting you.” The replies are reproduced in full in Part B below. Each incident is charged under both counts: the January 22, 2025 reply and the September 3, 2026 replies are each charged as a failure or refusal to abide by the Oath of Obligation in the clause quoted above (Section 1(6)), and each as action bringing or tending to bring the International Union and/or local unions into disrepute with the public, within the meaning of Section 1(12).

Time and place of the occurrences (Section 3):

January 22, 2025 — written communication within Local 131's jurisdiction; Part A carries the full header. September 3, 2026 — the email thread beginning with the 8:52 AM MDT notice to the members; the replies of 9:24 and 9:35 AM MDT were sent from the Local 131 office address and the reply of 9:52 AM MDT from an address identified as the accused's personal address by the provenance note at the end of Part B. Part B carries the headers of each reply, redacted per the rule stated at the head of Part B.

Other sections referred to (Section 3):

Article XIII, Section 4 (Oath of Obligation); Article XVIII, Section 2 (duty to prefer charges on knowledge); Article XVIII, Sections 1(6), 1(12), 3, 4, and 5 (the offenses, procedure, trial body, and penalties).

Notice to the charging member — read before signing.

Section 3 requires a member's signature; the drafting of this form is not yours and does not need to be, but the facts you sign to must be. Sign only what you can verify yourself: every factual statement above is drawn from Parts A and B of this document or from the provenance note at the end of Part B — check each against the page before you sign. Under Section 4 the Executive Board tries these charges, and you may be questioned on them at the hearing; be ready to point to the page that shows each fact. Section 5's penalties attach to a member found guilty of an offense; Section 2 makes preferring charges on knowledge a duty. What signing may mean for you beyond that, inside or outside the union, is a question for your own advisor. Filing is your act, not the drafter's: you file this with the Recording Secretary.

Charging member (Section 3 — “signed by the member making the charge”):

Name: _____ Signature: _____ Date: _____

To be filed with the Recording Secretary, Local 131, on: _____ Received by: _____

PART A — The January 22, 2025 written exchange

The member's request for help with a written refusal (4:26 PM MST) and the reply from the Local's account (5:10 PM MST).

Message 1 — Kevin Mears to the Local, January 22, 2025, 4:26 PM MST

From: Kevin Mears <kevin.mears@gmail.com>
To: "L. Oscar Duran" <iuecllocal131@comcast.net>
Date: Wed, 22 Jan 2025 16:26:20 -0700
Subject: Right to Refusal
Message-ID: <CAJHnrwMYsCW7jXTVe5Zj0BqBAeV6WT8k1A-Po=VUCjDnh-6rww@mail.gmail.com>

I'm going to refuse to operate the car tomorrow for the hazmat team. I need to work on a written statement, and i need your assistance.

"Before we begin today, I need to make an important statement.

I want to be clear - my goal is not to delay this project. However, as a member of the International Union of Elevator Constructors, I have a professional and moral obligation to address serious safety concerns.

I am exercising my right as a union elevator mechanic to refuse work that creates unnecessary hazards. I have made a specific, reasonable request: to be provided with proper training and a chemical respirator that would allow me to follow CDC protocols for handling routine hazards in the hoistway.

The current plan to disassemble hoistway components while a hazmat team is present creates additional mechanical risks in an already hazardous space. This area requires specialized knowledge and is rarely accessed by anyone outside our trade for good reason.

I have the right to request and receive appropriate PPE and training for handling common workplace hazards. The current approach not only fails to provide me with these basic protections but introduces new risks that could be avoided by following standard CDC guidelines.

I am documenting this refusal as a matter of worker safety and regulatory compliance."

Message 2 — Reply from the Local's account, January 22, 2025, 5:10 PM MST

From: iuecllocal131@comcast.net
To: 'Kevin Mears' <kevin.mears@gmail.com>
Date: Wed, 22 Jan 2025 17:10:27 -0700
Subject: RE: Right to Refusal
Message-ID: <012e01db6d2b\$35e06000\$a1a12000\$@comcast.net>

Where are you seeing "right to refusal" in the contract?

You can refuse any work you want. If you run the car, are you going to stage the car for hazmat team and exit the area?

As for as a statement, if you put it in writing to KONE, they might fire you. Just tell them, you don't want to do that job and ask for other work. Don't write anything down. That is my advice.

Personally, I think you are making too much out of this. Stage the car with an N95 mask and gloves, change gloves every time. Wait five minutes for dust to settle and move to next floor. Have them call you or radio you when they need you.

The contract is not written to change mid-stream. As a mechanic there is only so much protection we have.

There is a MOD mechanic open at TK in ABQ.

Marvin L. Regensberg-IUEC Local 131

Business Representative/Financial Secretary

O. 505-292-8715 C. 505-919-9320

lueclocal131@comcast.net <<mailto:lueclocal131@comcast.net>>

From: Kevin Mears <kevin.mears@gmail.com>

Sent: Wednesday, January 22, 2025 4:26 PM

To: L. Oscar Duran <lueclocal131@comcast.net>

Subject: Right to Refusal

I'm going to refuse to operate the car tomorrow for the hazmat team. I need to work on a written statement, and I need your assistance.

"Before we begin today, I need to make an important statement.

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I have the right to request and receive appropriate PPE and training for handling common workplace hazards. The current approach not only fails to provide me with these basic protections but introduces new risks that could be avoided by following standard CDC guidelines.

I am documenting this refusal as a matter of worker safety and regulatory compliance."

PART B — The September 3, 2026 written replies

Transcribed from the redacted .eml exports published in the record. Redaction rule (the record's "naming gate"): private individuals' email addresses are withheld — every member address, and the accused's personal address — while official accounts remain in the clear. The preparer's own contact information appears unredacted by his own consent.

Reply 1 — from the Local's account, September 3, 2026, 9:24 AM MDT

From: "iueclocal131@comcast.net" <iueclocal131@comcast.net>
To: Kevin Mears <kevin.mears@gmail.com>
Date: Thu, 03 Sep 2026 15:24:09 +0000
Subject: Re: dues table
Message-ID:
<GVXPR08MB77252BBE20FD8923D5CE5C58A6B62@GVXPR08MB7725.eurprd08.prod.outlook.com>

What Union business did I revel to you?

From: Kevin Mears <kevin.mears@gmail.com>
Sent: Thursday, September 3, 2026 8:52 AM
To: iueclocal131@comcast.net <iueclocal131@comcast.net>
Cc: Adam Florio <[member-address-redacted]>; Allen Hunter <[member-address-redacted]>; Armando Chavez <[member-address-redacted]>; Bennett Delano <[member-address-redacted]>; [member-address-redacted] <[member-address-redacted]>; Billy Sylvester <[member-address-redacted]>; Carlos Leyva <[member-address-redacted]>; Chad Herring <[member-address-redacted]>; Charles Graham <[member-address-redacted]>; Chris Hebert <[member-address-redacted]>; Chris Duenas <[member-address-redacted]>; Chris Kahn <[member-address-redacted]>; Chuck Blood <[member-address-redacted]>; Cosmo Grajeda <[member-address-redacted]>; Daniel Brown <[member-address-redacted]>; Daniel Mariscal <[member-address-redacted]>; Danny McAuley <[member-address-redacted]>; Danny Lamar <[member-address-redacted]>; [member-address-redacted] <[member-address-redacted]>; Elias Barba <[member-address-redacted]>; Fernando Reyes <[member-address-redacted]>; Fernando Saldivar <[member-address-redacted]>; Garrett Dye <[member-address-redacted]>; [member-address-redacted] <[member-address-redacted]>; Gilbert Gonzales <[member-address-redacted]>; Hector Rincon <[member-address-redacted]>; Irvin Illarramendi <[member-address-redacted]>; Israel Rincon <[member-address-redacted]>; Jaime Salcedo <[member-address-redacted]>; James Rankin <[member-address-redacted]>; Jamey Woodward <[member-address-redacted]>; [member-address-redacted] <[member-address-redacted]>; Jarel Ortiz <[member-address-redacted]>; Jason Blacksher <[member-address-redacted]>; Jeremy Bobo <[member-address-redacted]>; Jerry Rincon <[member-address-redacted]>; Jerry Rincon Jr. <[member-address-redacted]>; Joe Meza <[member-address-redacted]>; Joe Smith <[member-address-redacted]>; John Boutte <[member-address-redacted]>; John Bowler <[member-address-redacted]>; John Gonzales <[member-address-redacted]>; John W. Doyal <[member-address-redacted]>; Jonathan Gonzalez <[member-address-redacted]>; Jose Aceves <[member-address-redacted]>; Joseit Vazquez <[member-address-redacted]>; Joshua Scott <[member-address-redacted]>; Juan Silva <[member-address-redacted]>; Justin Clifford <[member-address-redacted]>; Justin Rariden <[member-address-redacted]>; Kip McDonald

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Subject: Re: dues table

Brothers,

I withdrew from Local 131 on June 2, 2025. I'm not a member.

Your oath says you never reveal the Local's business to anyone you don't know to be a member.
That's me now. So don't answer this email.

I left as a member in good standing. That status does not hold.

Both Marvin and I are subject to charges under Article XVIII — he as an officer, I as a withdrawn member under Article XV(B), Section 1. The charges, with the facts and sections, are in the attached statement.

The Constitution says: if you know a member broke a rule, it's your duty to put charges in writing — Article XVIII, Section 2.

I broke that rule, and I chose to leave instead of bringing him up on charges.

I'm asking the membership, and specifically the officers to follow procedure, and issue charges to both myself and Marvin.

I will not be returning to the trade. The charges presented here were available and known to me before leaving.

The full record is public at

github.com/Bluescontact/building-9980-account<<http://github.com/Bluescontact/building-9980-account>>.

Kevin Mears

kevin.mears@gmail.com<<mailto:kevin.mears@gmail.com>>, (954) 214-1877

Withdrawn, Local 131, June 2, 2025

Former Recording Secretary, Local 131

On Thu, Dec 5, 2024 at 9:13 AM <iuecllocal131@comcast.net<mailto:iuecllocal131@comcast.net>> wrote:

Gentlemen,

Some members are having trouble opening table is as a Word Document. Here is table in PDF form.

Work Safe

Marvin L. Regensberg-IUEC Local 131

Business Representative/Financial Secretary

O. 505-292-8715<tel:(505)%20292-8715> C. 505-919-9320<tel:(505)%20919-9320>

Iuecllocal131@comcast.net<mailto:Iuecllocal131@comcast.net>

[cid:ii_1a067befee64ce8e91]

Reply 2 — from the Local's account, September 3, 2026, 9:35 AM MDT

From: "iuecllocal131@comcast.net" <iuecllocal131@comcast.net>

To: Kevin Mears <kevin.mears@gmail.com>

Date: Thu, 03 Sep 2026 15:35:43 +0000

Subject: Re: dues table

Message-ID:

<GVXPR08MB7725D0BD3876B1F2F7B9B711A6B62@GVXPR08MB7725.eurprd08.prod.outlook.com>

Are you alright? Sounds like you are angry. You're not in the Union. People are laughing at you, I am getting calls saying that you are crazy...people are laughing at you saying things like, "the guy is out-there". Posting something on the internet is not a public record, sorry. You living in fantasy land. You have no say in this Union.

From: Kevin Mears <kevin.mears@gmail.com>

Sent: Thursday, September 3, 2026 8:52 AM

To: iuecllocal131@comcast.net <iuecllocal131@comcast.net>

Cc: Adam Florio <[member-address-redacted]>; Allen Hunter <[member-address-redacted]>; Armando Chavez <[member-address-redacted]>; Bennett Delano <[member-address-redacted]>; [member-address-redacted] <[member-address-redacted]>; Billy Sylvester <[member-address-redacted]>; Carlos Leyva <[member-address-redacted]>; Chad Herring <[member-address-redacted]>; Charles Graham <[member-address-redacted]>; Chris Hebert <[member-address-redacted]>; Chris Duenas <[member-address-redacted]>; Chris Kahn <[member-address-redacted]>; Chuck Blood <[member-address-redacted]>; Cosmo Grajeda <[member-address-redacted]>; Daniel Brown <[member-address-redacted]>; Daniel Mariscal <[member-address-redacted]>; Danny McAuley <[member-address-redacted]>; Danny Lamar <[member-address-redacted]>; [member-address-redacted] <[member-address-redacted]>; Elias Barba <[member-address-redacted]>; Fernando Reyes <[member-address-redacted]>; Fernando Saldivar <[member-address-redacted]>; Garrett Dye <[member-address-redacted]>; [member-address-redacted] <[member-address-redacted]>; Gilbert Gonzales <[member-address-redacted]>; Hector Rincon <[member-address-redacted]>; Irvin Illarramendi <[member-address-redacted]>; Israel Rincon <[member-address-redacted]>; Jaime Salcedo <[member-address-redacted]>; James Rankin <[member-address-redacted]>; Jamey Woodward

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Subject: Re: dues table

Brothers,

I withdrew from Local 131 on June 2, 2025. I'm not a member.

Your oath says you never reveal the Local's business to anyone you don't know to be a member.
That's me now. So don't answer this email.

I left as a member in good standing. That status does not hold.

Both Marvin and I are subject to charges under Article XVIII — he as an officer, I as a withdrawn member under Article XV(B), Section 1. The charges, with the facts and sections, are in the attached statement.

The Constitution says: if you know a member broke a rule, it's your duty to put charges in writing — Article XVIII, Section 2.

I broke that rule, and I chose to leave instead of bringing him up on charges.

I'm asking the membership, and specifically the officers to follow procedure, and issue charges to both myself and Marvin.

I will not be returning to the trade. The charges presented here were available and known to me before

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The full record is public at
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[cid:ii_1a067befee64ce8e91]

Reply 3 — from the accused's personal address, September 3, 2026, 9:52 AM MDT

From: "Marvin Regensberg"

To: Kevin Mears <kevin.mears@gmail.com>

Date: Thu, 03 Sep 2026 15:52:44 +0000

Subject: Re: dues table

Message-ID:

<BL3PR02MB80174E7D70D0F0589D26D5A2F3B62@BL3PR02MB8017.namprd02.prod.outlook.com>

So far, no one has stepped forward to file charges. Mechanics did step forward and informed the body that you would blow up boards a lot and that your work was piss poor. They also say that you admitted buying the mechanics test online. Is that why you scored so high? Many people are saying they thought you were gay, there is nothing wrong with being gay. Others are saying that they saw you driving a school bus. That's cool, glad you're helping the children. I am stating this as an American citizen with free will. Keep running your mouth and I will keep insulting you.

From: Kevin Mears <kevin.mears@gmail.com>

Sent: Thursday, September 3, 2026 8:52 AM

To: iueclocal131@comcast.net <iueclocal131@comcast.net>

Cc: Adam Florio <[member-address-redacted]>; Allen Hunter <[member-address-redacted]>; Armando

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Subject: Re: dues table

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Marvin L. Regensberg-IUEC Local 131

Business Representative/Financial Secretary

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[cid:ii_1a067befee64ce8e91]

Provenance note (Parts A and B). Part A is transcribed from raw email exports made from the sender's Gmail on September 9, 2026; the .eml originals are held by the preparer and their SHA-256 hashes are recorded in the preservation manifest of September 9, 2026, produced on request. Part B is transcribed from the redacted .eml exports published at github.com/Bluescontact/building-9980-account (charges/eml-redacted/); the SHA-256 hashes of the unredacted originals are recorded in charges/README.md there. Reply 3's From line reads "Marvin Regensberg" without an address per the redaction rule above; the unredacted original's From address is the accused's personal address, and its SHA-256 (recorded in charges/README.md) lets any holder of the address verify the identification without this document disclosing it.

Sources: every quoted statement is checkable against Parts A and B of this document. Constitution: IUEC Constitution and By-Laws (2021), Art. XVIII pp. 27–31, Art. XIII §4, published at iuec.org. The Statement of facts under Article XVIII, Section 3, dated September 3, 2026 — five counts, sent to this membership that day — stands in the public record: github.com/Bluescontact/building-9980-account. This form charges the two of those offenses provable in full from Parts A and B alone.